

OFFICE OF THE SECRETARY

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April 17, 2019

The Honorable John P. Vander Feer
Judge of the Superior Court
County of San Bernardino
247 West Third Street 11th Floor
San Bernardino, CA 92415

Re: Linda Marie Fill
CDCR No: X03953
Case No: FSB040619
Date of Sentence: April 1, 2004

Dear Honorable John P. Vander Feer:

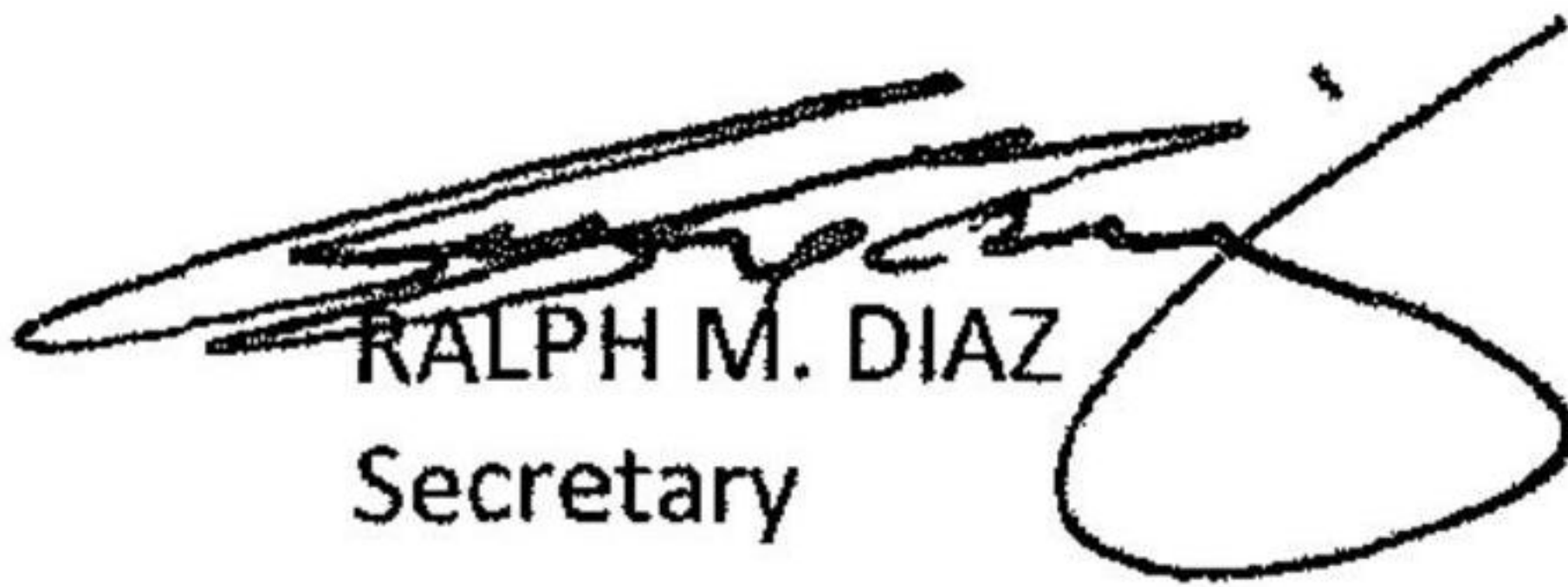
The purpose of this letter is to provide the court with the authority to resentence inmate Linda M. Fill, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, Subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Inmate Fill has received four serious Rules Violation Reports (RVR's) and two Administrative RVR's since she was received CDCR on April 13, 2004. A review of inmate Fill's file indicates she has participated in and facilitated several Self-Help Groups. She has earned seven Laudatory Chrono's from various staff and volunteers coupled with 19 certificates ranging from being certified as Drug and Alcohol Counselor to Building Trades, Multi-Craft Core Curriculum.

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Having reviewed the enclosed documentation, it appears that inmate Fill's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that she be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Nancy Eberhardt, County Court Executive Officer
San Bernardino County District Attorney's Office
San Bernardino County Public Defender's Office